

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BINA FROU SIMPARA

Plaintiff,

-against-

SUMMONSPOLICE OFFICER JOEL MUNOZ, Tax No. 925799, and
POLICE OFFICER CHARLES POWELL, Tax No.
959090,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates NEW YORK
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 20, 2021

Yours, etc.

/s/

JACOBS & HAZAN, LLP.

DAVID M. HAZAN, ESQ.

Attorney for Plaintiff

30 Vesey Street, 4th Floor

New York, New York 10007

(212) 577-2690

TO: POLICE OFFICER JOEL MUNOZ, Tax No. 925799, Transit District 1, 1 Central Park
West, New York, NY 10023
POLICE OFFICER CHARLES POWELL, Tax No. 959090, Transit District 1, 1 Central
Park West, New York, NY 10023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BINAFROU SIMPARA

Plaintiff,

-against-

POLICE OFFICER JOEL MUNOZ, Tax No. 925799, and
POLICE OFFICER CHARLES POWELL, Tax No.
959090,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BINAFROU SIMPARA, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on or about January 19, 2018, at approximately 3:30 p.m., plaintiff, BINAFROU SIMPARA, while lawfully present as a passenger inside of a F subway train, stopped at the station located at 63rd Street and Lexington Avenue, New York, New York, when the individually named defendant police officers entered the train, unlawfully removed plaintiff from the train without legal justification and subjected plaintiff to the use of excessive force as defendants removed him from the train, causing plaintiff to suffer severe physical injuries, including but not limited to swelling to plaintiff's left leg and fractures in his left ankle and left knee. Those officers that did not touch plaintiff failed to intervene and protect him from being falsely imprisoned, falsely arrested, denied the right to due process/ right to a fair trial, and illegally seized. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully removed plaintiff from the subway, subjected plaintiff to the use of excessive force, and damaged plaintiff's property in violation of the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff BINAFROU SIMPARA is a resident of the State of New York.

3. POLICE OFFICER JOEL MUNOZ, Tax No. 925799, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER JOEL MUNOZ, Tax No. 925799, is and was at all times relevant herein, assigned to the Transit District 1 Precinct.

5. POLICE OFFICER JOEL MUNOZ, Tax No. 925799, is being sued in his individual and official capacities.

6. POLICE OFFICER CHARLES POWELL, Tax No. 959090, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER CHARLES POWELL, Tax No. 959090, is and was at all times relevant herein, assigned to the Transit District 1 Precinct.

8. POLICE OFFICER CHARLES POWELL, Tax No. 959090, is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

10. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. By way of background, plaintiff has a history of quadriplegia and is confined to a wheelchair.

14. On January 19, 2018, at approximately 3:30 p.m., plaintiff, BINA FROU SIMPARA, was lawfully traveling home as a passenger on the F subway train at which time the subway train stopped in the station located at 63rd Street and Lexington Avenue, New York, New York

15. Prior to the train stopping at the station located at 63rd Street and Lexington Avenue, plaintiff was not involved in any altercations, arguments, or disputes with any individuals on the subway, nor had plaintiff violated any laws, rules, or regulations.

16. While the train was stopped in the station located at 63rd Street and Lexington Avenue plaintiff noticed, the defendant police officers in the train car where plaintiff was located.

17. While the train was stopped in the station located at 63rd Street and Lexington Avenue the defendant police officers suddenly ordered plaintiff to get off the train, without cause or legal justification.

18. Plaintiff asked the officers why they wanted him to exit the train, and plaintiff explained to defendants that he paid the subway fair to ride the train was getting off at the next stop.

19. Thereafter, the defendant police officers told plaintiff that he was not getting off at the next stop because he was getting "off now."

20. No reasonable police officer would have believed that plaintiff posed a threat or danger to the defendant police officers or anyone on the train.

21. Nevertheless, the defendants proceeded to forcibly grab plaintiff and his wheelchair and attempted to lift plaintiff's wheelchair off the ground by holding the leg rests on plaintiff's wheelchair.

22. While defendants were lifting plaintiff's wheelchair off the ground with plaintiff confined to the wheelchair the officers broke the left footrest of the wheelchair, causing plaintiff's left leg to dangle underneath the wheelchair.

23. The forceful and dangerous manner in which defendants carried plaintiff and his wheelchair out of the subway car caused plaintiff's left leg to become caught in the wheel of the wheel chair, but the defendant officers continued to carry plaintiff and the wheelchair out of the train even though plaintiff's leg was caught in the wheel of the wheelchair, the upper part of plaintiff's leg was being forcefully twisted in a different direction, and plaintiff was screaming from the severe pain the defendants were inflicting upon him.

24. The defendants carried plaintiff and his wheelchair off of the train and then dragged plaintiff and his wheelchair up the stairs from the subway station to the street\

25. The force used by the police officers against plaintiff to remove plaintiff from the subway car was unreasonable and excessive and caused plaintiff to suffer numerous painful

injuries to his body, including but not limited to swelling to plaintiff's left leg and fractures in his left ankle and left knee.

26. Plaintiff was experiencing severe pain after the officers dragged him out of the subway station to the street level and the defendants acknowledged that they recognized that plaintiff was injured.

27. Plaintiff told the officers that he was going to file a complaint against them for removing him from the subway and injuring him, without legal justification and plaintiff asked defendants for medical attention.

28. The defendants told plaintiff that they did not want him to file a complaint against them and decided to walk plaintiff back to the train platform and allow plaintiff to get back on the subway to go home instead of getting medical assistance for plaintiff and providing plaintiff an opportunity to file a complaint against them,

29. Plaintiff got back onto the subway after the defendants escorted plaintiff back to train, and plaintiff traveled home while he was in severe pain from the injuries caused to him by the officers.

30. Plaintiff subsequently had his injuries treated by medical providers and was diagnosed, amongst other things, with fractures to his left knee and left ankle and was required to wear a brace on his left leg for a period of time.

31. As a result of the excessive use of force by the defendant officers, plaintiff sustained serious physical injuries, including but not limited to, a fractured knee and ankle.

32. At no time did plaintiff verbally or physically threaten the defendant NYPD officers, and no reasonable police officer would believe that plaintiff verbally or physically threatened the defendant NYPD officers at any time.

33. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time relevant herein..

34. Plaintiff was subjected to excessive force by the individual defendant police officers without cause or legal justification.

35. At no time relevant herein did plaintiff resist defendants in any way. \

36. The following day, on January 19, 2018 plaintiff was forced to seek medical treatment for the physical injuries to his body that were caused by the defendants when they subjected plaintiff to the use of excessive force and he returned to medical providers to receive follow up treatment for the injuries,

37. As a result of the excessive force used by the defendant police officers, plaintiff sustained serious physical injuries, including but not limited to, a fractured knee and fractured ankle.

38. None of the individually named defendants intervened to prevent or stop the use of excessive force against plaintiff or prevent further injury to plaintiff.

39. By failing to intervene in order to stop the use of excessive force, these defendants demonstrated a deliberate indifference to a substantial risk of serious bodily harm to plaintiff.

40. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical and psychological injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The use of excessive force by defendants by forcefully removing plaintiff from the subway car and dragging him up the stairs in the subway station to street level was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SECOND CAUSE OF ACTION

Failure to Intervene

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

45. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

WHEREFORE, plaintiff BINA FROU SIMPARA demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 19, 2021

/s/
DAVID M. HAZAN